

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



October 16, 2018

Honorable Bruce A. Young  
Judge of the Superior Court  
County of Ventura  
P. O. Box 6489  
Ventura, CA 93006-6489

Re: Ortega, Joseph  
CDC No.: BG1311  
Case No.: 2015010912  
Date of Sentence: 4/19/2018

Dear Honorable Bruce A. Young:

The purpose of this letter is to provide the court with authority to resentence Joseph Ortega pursuant to Penal Code Section 1170, subdivision (d)<sup>1</sup>. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Inmate Ortega was sentenced in 2018, and was convicted of section 245, subdivision (b), Assault with semiautomatic firearm. The trial court sentenced inmate Ortega on 4/19/2018. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Ortega's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

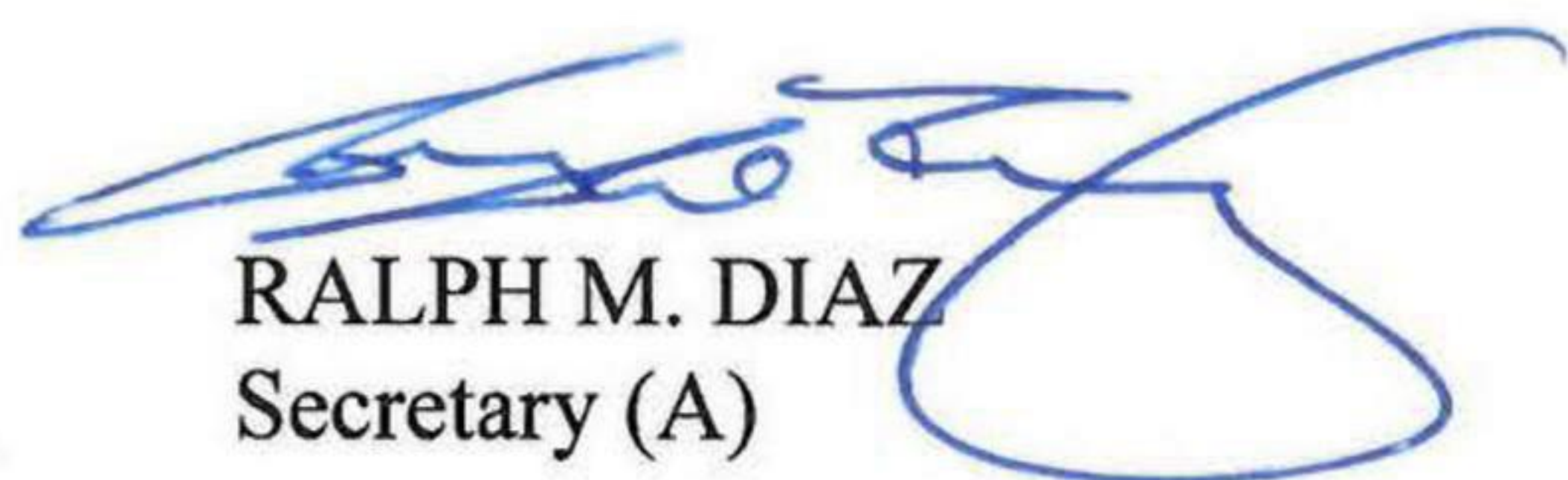
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<sup>1</sup> All further statutory references are to the Penal Code unless otherwise indicated.



Based on the above facts and case law, it appears that inmate Ortega's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled<sup>2</sup> and that he be resentenced<sup>3</sup> in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ  
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Information/Complaint

cc: Honorable Patricia M. Murphy, Ventura County Presiding Judge  
Ventura District Attorney  
Public Defender

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<sup>2</sup> Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8)).

<sup>3</sup> Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.



**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**  
**[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]**

BG1311

VC

CR-290

|                                                                           |                                        |                                                                                                         |  |                      |
|---------------------------------------------------------------------------|----------------------------------------|---------------------------------------------------------------------------------------------------------|--|----------------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>Ventura</b>                   |                                        | 1931850                                                                                                 |  |                      |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <b>ORTEGA, JOSEPH</b> | DOB: <b>10-05-84</b>                   |                                                                                                         |  | <b>2015010912</b> -A |
| AKA:                                                                      |                                        |                                                                                                         |  | <b>2014004162</b> -B |
| CII NO.: <b>A23500442</b>                                                 | <input type="checkbox"/> NOT PRESENT   |                                                                                                         |  | -C                   |
| BOOKING NO.: <b>1931850</b>                                               |                                        |                                                                                                         |  | -D                   |
| COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT                        |                                        | <input type="checkbox"/> AMENDED<br>ABSTRACT                                                            |  |                      |
| DATE OF HEARING<br><b>04-19-18</b>                                        | DEPT. NO.<br><b>12</b>                 | JUDGE<br><b>Bruce A. Young</b>                                                                          |  |                      |
| CLERK<br><b>S. Lopez</b>                                                  | REPORTER<br><b>Christina Rodriguez</b> | PROBATION NO. OR PROBATION OFFICER<br><b>Marco Flores</b> <input type="checkbox"/> IMMEDIATE SENTENCING |  |                      |
| COUNSEL FOR PEOPLE<br><b>Blake Heller</b>                                 |                                        | COUNSEL FOR DEFENDANT<br><b>Steve Powell</b> <input checked="" type="checkbox"/> APPTD.                 |  |                      |

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment  
 (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME                              | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |      | TERM (L, M, U) | CONCURRENT | CONSECUTIVE 1/3 VIOLENT | CONSECUTIVE 1/3 NON-VIOLENT | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (refer to rule 5) | 654 STAY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|-------|------|-------------|------------------------------------|----------------------|------------------------------------|--------------|-------|------|----------------|------------|-------------------------|-----------------------------|-----------------------|---------------------------------------|----------|---------------------------------------|------|
|       |      |             |                                    |                      |                                    | JURY         | COURT | PLEA |                |            |                         |                             |                       |                                       |          | YRS.                                  | MOS. |
| 2A    | PC   | 245(b)      | Assault with semiautomatic firearm | 2013                 | 02-28-18                           |              |       | X    | L              |            |                         |                             |                       |                                       |          | 6                                     | 00   |
| 4A    | PC   | 29800(a)(1) | Own/poss/contr firearm by felon    | 2013                 | 02-28-18                           |              |       | X    | M              |            |                         | X                           |                       |                                       |          | 1                                     | 04   |
| 3B    | HS   | 11378       | Possession for sale contr substanc | 2014                 | 02-28-18                           |              |       | X    | M              |            |                         | X                           |                       |                                       |          | 1                                     | 04   |
|       |      |             |                                    |                      |                                    |              |       |      |                |            |                         |                             |                       |                                       |          |                                       |      |
|       |      |             |                                    |                      |                                    |              |       |      |                |            |                         |                             |                       |                                       |          |                                       |      |
|       |      |             |                                    |                      |                                    |              |       |      |                |            |                         |                             |                       |                                       |          |                                       |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT     | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |    |
|-------|-----------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|----|
| 2A    | PC 186.22(b)(1) | 10                             | PC 12022.7  | 3                              |             |                                | 13    | 00 |
| 3A    | PC 186.22(b)(1) | 1                              |             |                                |             |                                | 1     | 00 |
| 3B    | PC 12022(c)     | 1.4                            |             |                                |             |                                | 1     | 04 |
|       |                 |                                |             |                                |             |                                |       |    |
|       |                 |                                |             |                                |             |                                |       |    |
|       |                 |                                |             |                                |             |                                |       |    |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT  | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |    |
|--------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|----|
| PC 667(a)(1) | 5                              |             |                                |             |                                | 5     | 00 |
|              |                                |             |                                |             |                                |       |    |
|              |                                |             |                                |             |                                |       |    |
|              |                                |             |                                |             |                                |       |    |

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(l) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES:  

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 29 00

18MAY 3PM 815 WSP RECORDS



2015010912

-A

2014004162

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$600.00 per PC 1202.4(b) forthwith per PC 2085.5; \$600.00 per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case B: \$300.00 per PC 1202.4(b) forthwith per PC 2085.5; \$300.00 per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case B: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case C: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case D: \$ Amount to be determined to victim(s)\* Restitution Fund

\* Victim name(s), if known, and amount breakdown in item 11, below. \* Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.  
Case B: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.  
Case C: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.  
Case D: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$120.00 per PC 1465.8. e. Criminal Conviction Assessment \$90.00 per GC 70373.

10. TESTING a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

11. Other orders (specify):

- Court recommends a counseling or educational program pursuant to PC 1203.096

A) Shall read and sign CII Notification Form and register pursuant to PC 186.30

B) Shall read and sign CII Notification Form and register pursuant to PC 11590

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit  
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic/Latin

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing. A,B  
b. ☐ at resentencing per decision on appeal.  
c. ☐ after revocation of probation.  
d. ☐ at resentencing per recall of commitment. (PC1170(d).)  
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

| CASE                      | TOTAL CREDITS | ACTUAL                            | LOCAL CONDUCT                                                                   |
|---------------------------|---------------|-----------------------------------|---------------------------------------------------------------------------------|
| A                         | 1587          | 1380                              | 207 <input type="checkbox"/> 4019<br><input checked="" type="checkbox"/> 2933.1 |
| B                         | 2             | 2                                 | 0 <input checked="" type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1   |
| C                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1                |
| D                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1                |
| Date Sentence Pronounced: |               | Time Served in State Institution: |                                                                                 |
| 04-19-18                  |               | DMH                               | CDCR CRC                                                                        |

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.  
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.  
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Inez Robles

DATE

04-20-18